



SPONSOR: Rep. K. Johnson & Sen. Lockman

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 217

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO KEY SURRENDER IN RESIDENTIAL LEASES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter I, Chapter 51, Title 25 of the Delaware Code by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 § 5123. Surrender of rental unit keys.

4 (a) If a lease requires the surrender of rental unit keys as a condition for return of a security deposit, the lease must
5 provide a clear procedure for the surrender and may not require surrender prior to the end of the lease term.

6 (b) If the last day of the lease falls on a Saturday, Sunday, legal holiday, or other day on which the leasing
7 management office is closed, possession of the rental unit shall be considered to have been returned on the date either of the
8 following occurs:

9 (1) Tenant surrenders keys to the rental unit in accordance with the procedures set forth in the lease.

10 (2) Tenant completes the procedure under subsection (d) of this section.

11 (c) If there is more than 1 tenant on the lease, possession is considered to have been returned to the landlord only
12 when all tenants on the lease have complied with the key surrender procedure set forth in the lease, or as provided in
13 subsection (d) of this section.

14 (d) If the lease does not provide a clear the procedure for the surrender of keys, and the landlord has not provided
15 information to the tenant prior to the end of the lease, a tenant may leave keys in the rental unit or mailbox of the leasing
16 office by the end of the lease agreement date with written notice to the landlord in reference to where the keys were placed
17 and the date of return.

SYNOPSIS

This Act requires a lease to set forth clear procedures for the surrender of rental unit keys at the end of the rental term in residential leases, and provides default procedures for key return when there is no lease provision or other agreement.